

Smt. Ramvati v. State of U.P. — Tehsildar recovery citation; representation to Executive Engineer

High Court of Judicature at Allahabad · Division Bench · 11 November 2019 · Writ-C No. 36137 of 2019 · **Writ disposed; Executive Engineer to decide representation; recovery stayed four weeks.**

HEADNOTE

On a writ against a Tehsildar recovery citation, met with the objection that bill-accuracy disputes lie under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005, the Court did not decide maintainability or the bills. It disposed of the petition by directing the Executive Engineer to decide a representation by a speaking order and keeping the recovery in abeyance for a short window, failing which the petition would stand dismissed.

FACTUAL SUMMARY

Smt. Ramvati challenged a 20 September 2019 Tehsildar recovery citation from Kasganj and sought mandamus to enforce a 1 April 2019 Vidyut Lokpal, Lucknow order. The licensee's counsel objected that the dispute was bill accuracy, for which Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provided a statutory alternative remedy. She replied that the recovery certificate had already issued, so that remedy might leave her remediless, and asked for liberty to approach the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing dispute — alternative remedy — recovery citation

HOLDING

Without ruling on the licensee's Clause 6.5(b) maintainability objection or on bill accuracy, the Court disposed of the writ by permitting the consumer to represent to the Executive Engineer, Urban Electricity and Distribution Division, Kasganj, within a week; that officer was to pass a reasoned speaking order within four weeks; recovery on the 20.09.2019 citation was to remain in abeyance for four weeks or until that decision, whichever earlier; default in filing would dismiss the petition without further reference. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.5(B) BARS THE WRIT

Preliminary objection recorded; not ruled upon. ¶ 1

NOT DECIDED — ACCURACY OF THE ELECTRICITY BILLS AND VALIDITY OF THE RECOVERY CITATION DATED 20.09.2019

¶ 1

NOT DECIDED — COMPLIANCE WITH THE VIDYUT LOKPAL, LUCKNOW ORDER DATED 1.4.2019

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